



Maritime &
Coastguard
Agency

Guidance

MGN 446 (M+F) Amendment 3

The merchant shipping and fishing vessels (control of vibration at work) regulations 2007 – procedure for seeking exemptions

Published 3 October 2025

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Summary

This notice provides guidance on and sets out the procedure for obtaining an exemption from the requirements of the merchant shipping and fishing vessel (control of vibration at work) regulations 2007.

This notice outlines updated guidance and reflects the merchant shipping (maritime labour convention) (health and safety) (amendment) regulations (S.I. 2014/1616) (“the MLC health and safety amendments”) and the merchant shipping (work in fishing convention) (consequential and minor amendments) regulations (S.I. 2018/1109) (the “work in fishing consequential amendments”).

The two sets of legislative amendments extend the duties to protect “workers” in health and safety legislation so that they protect all seafarers and fishermen, regardless of their employment status, and duties on employers also apply to shipowners and fishing vessel owners. In this notice the terms “shipowners and employers” and “seafarers and other workers” are used. In this notice, “shipowner” includes “fishing vessel owner”, and “seafarer” includes “fisherman”.

1. Introduction

1.1 The merchant shipping and fishing vessel (control of vibration at work) regulations 2007 (“the vibration Regulations”) are intended to protect workers from the harmful effects of vibration. Regulation 12 allows for an exemption to be granted by the MCA from the following requirements of the regulations.

1.1.1 Under the vibration regulations, the employer shall ensure that workers are not exposed to mechanical vibration exceeding the daily exposure limit value specified below;

(a) For hand-arm vibration - the daily exposure limit value standardised to an eight hour reference period 5 m/s^2 or

(b) For whole-body vibration – the daily exposure limit value standardised to an eight hour reference period is 1.15 m/s^2

1.2 An exemption may be granted; provided that the MCA is satisfied that the vessel is designed to the highest available standard and the specific characteristics of the ship do not make it possible to comply with the whole body exposure limit value, whatever technical and organisational measures are adopted.

2. Conditions for seeking exemptions

2.1 In order that exemptions may be considered by the MCA, the applicant must first ensure the following conditions are met;

(a) the exposure value averaged over 40 hours is less than the exposure limit value;

(b) there is evidence to show that the risks from the pattern of exposure are lower than those from exposure at the exposure limit value;

(c) the worker concerned is subject to health monitoring in accordance with regulation 9; and

(d) the risk is reduced to as low as is reasonably practicable.

2.2 The MCA will also need to be satisfied that the applicant has taken the necessary and appropriate steps;

(a) to consult the employer or other person having control of the matter

(b) to consult the workers or their representatives

(c) to demonstrate that the resulting risks are reduced to as low as is reasonably practicable; and

(d) to demonstrate health surveillance has been increased to a level considered appropriate to the MCA.

3. Submitting an exemption application

3.1 To apply for an exemption you will need to contact the nearest MCA marine office or customer service manager (if applicable), requesting form MSF 1261 (<https://www.gov.uk/government/publications/apply-for-equivalence-exemption-or-alternative-design-and-arrangement-from-statutory-requirements>), which will need to be completed outlining full details of the following areas;

- Detail the work procedure the exemption is sought for. You will need to provide information on the workers affected and equipment used, including frequency and length of use.
- Steps taken to comply with the regulations to include detailed risk assessment
- Safety case for which the application is being sought. What are the health and safety implications of complying with the regulations?
- Health monitoring/risk management – detail what steps will be taken to monitor the safety of the workers concerned and the steps you are taking to reduce the risks
- You may wish to use qualified advice (such as from an occupational physician) to support your case.

3.2 Exemptions may only be granted for a maximum period of four years, and may be withdrawn by the secretary of state if he is satisfied that the exemption is no longer justified.

4. Additional reading

4.1 The MCA has produced two codes of practice for controlling risks due to whole-body vibration and hand transmitted vibration on ships which provide practical advice on the practical implementation of the merchant shipping and fishing vessel (control of vibration at work) regulations 2007.

4.2 The codes may be purchased from the stationery office order line on +44(0)333 202 5070 quoting the ISBN nos:

- Hand transmitted vibration ISBN : 978-0-11-554160-5
- Whole body vibration ISBN : 978-0-11-553076-0

4.3 MGN 436 amendment 3 - whole body vibration: guidance on mitigating against the effects of shocks and impacts on small vessels can be downloaded from the MCA website at: www.tsoshop.co.uk
(<https://www.tsoshop.co.uk/>)

More information

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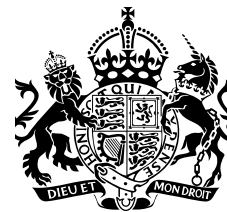
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